PRIZE ENDOWMENT AGREEMENT

BETWEEN

DORMAN LONG ENGINEERING LIMITED

AND

AFE BABALOLA UNIVERSITY ADO – EKITI

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THIS PRIZE ENDOWMENT AGREEMENT (the "Agreement") is made this _____ day of _____ 2023 (the "Effective Date").

BETWEEN

DORMAN LONG ENGINEERING LIMITED, a company incorporated and existing under the laws of the Federal Republic of Nigeria, having its registered address at 12/14 Agege Motor Road, Mushin, Lagos, with RC 744 (hereinafter referred to as "**DLE**" or "**the Donor**" which expression shall, where the context so admits, include its successors in title, duly appointed representatives, and assigns) of the one part;

AND

AFE BABALOLA UNIVERSITY ADO – EKITI, a private university established by eminent Nigerian lawyer and philanthropist, Afe Babalola, SAN, incorporated and existing under the laws of the Federal Republic of Nigeria as a Company Limited by Guarantee, having its registered address at KM 85, Afe Babalola Way, Ado – Ekiti, Ekiti State with RC 887359 (hereinafter referred to as "**ABUAD**" or "**the Donee**" which expression shall, where the context so admits, include its successors in title, duly appointed representatives, and assigns) of the other part;

DLE and ABUAD shall individually be referred to as a "**Party**" and collectively as "**Parties**".

WHEREAS:

A. DLE is a leading oil field equipment, structural steel, marine structures engineering, pipeline fabrication and asset management company operating out of Nigeria;

B. ABUAD is a private university established for the purpose of reforming education in the country by providing and leading others in quality education, service, industry and character as well as discipline.

C. DLE is desirous of investing in the growth and development of Nigerian engineering talent in order to support the nation's efforts at infrastructural development by encouraging outstanding students in engineering to seek ever greater excellence.

D. In furtherance of the foregoing, DLE has decided to endow prizes for excellence in engineering studies and has approached ABUAD which is a centre for academic excellence to partner with it in rewarding outstanding Nigerian engineering students; (the "Purpose").

E. In addition to cash prizes for the best graduating students:
Each year, the 3rd year students in each of the award categories in ABUAD engineering departments with the highest CGP will also be offered the opportunity to serve their internship with Dorman Long Engineering Limited;

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Upon graduation, in addition to the monetary awards, the 3 best graduating students in the award categories will be offered the opportunity to spend their year of National Youth Service (NYSC) at Dorman Long Engineering Limited and be exposed to a wide – ranging scope of practical engineering experience.

F. Consequently, the Parties have entered into this Agreement to express the modalities, terms and conditions which will guide them in achieving the Purpose.

NOW THEREFORE, it is hereby agreed as follows: -

1. **DEFINITION AND INTERPRETATION**

1.1 "**Award**" means the prize given to the Best Graduating Student in any of the 3 (Three) engineering disciplines who qualifies for the award.

1.2 "**Awardee**" means the best graduating student in any of the 3 (Three) engineering disciplines who qualifies for the award.

1.3 "**Award Day**" means the day on which ABUAD celebrates the graduation of its students in any academic session.

1.4 "**Best Graduating Student**" means the student with the highest CGP in any graduating set. In the event of a tie in CGP in any of the categories, the student who has maintained the highest CGP for the greatest number of years of study at the University in the category shall be the Best Graduating Student.

1.5 "**Donee**" means Afe Babalola University Ado – Ekiti

1.6 "**Donor**" means Dorman Long Engineering Limited

1.7 "**Endowment**" means the gift specified above which shall be used for the purpose of creating an endowment fund to be known as the **Dorman Long Engineering Limited Fund for Excellence in Engineering Studies** (the "Fund").

1.8 "**Funds**" means the monies given by Dorman Long Engineering Limited to Afe Babalola University Ado – Ekiti for the purpose of paying the awardees.

2. **PURPOSE OF THE FUNDS**: To endow prizes for the best graduating students in Civil, Electrical and Mechanical Engineering. The prizes will be named as follows:

2.1 The Dorman Long Engineering Limited Prize for Excellence in Engineering – Civil Engineering.

2.2 The Dorman Long Engineering Limited Prize for Excellence in Engineering – Electrical Engineering.

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2.3 The Dorman Long Engineering Limited Prize for Excellence in Engineering – Mechanical Engineering.

Each prize winner will receive a cash sum of N500,000.00 (Five Hundred Thousand Naira) only.

3. **SOURCE OF THE FUNDS:** The Funds will be provided by DLE and will be paid to ABUAD by cheque via annual payments to ABUAD on or before the end of Q2 of every year for the prizes to be awarded in that session.

4. **ADMINISTRATION OF THE FUND:** The Funds paid to the Donee for these Awards may, for investment purposes, be merged with any of the general investment assets of ABUAD. However, whatever investment ABUAD puts the Funds into shall always have the Funds available by the day of the Award to ensure that Awardees can receive immediate value on the Award Day.

5. **DURATION OF THE FUND:** DLE intends for the Fund to have an initial term of 5 (Five) years whereafter the Parties shall meet to review its value, benefits, success and modalities and agree on the continuation or otherwise and whether to do so on identical terms or otherwise.

6. **ANNOUNCEMENT OF THE FUND:** After the initial announcements of the creation of the Fund including the reasons for its creation, the sum of each award to be made from the Fund, descriptions of relevant qualifications for the award and other pertinent details, which shall be done jointly by the Parties, further announcements as considered necessary may be made by either Party in any print, digital or other media. Provided that Parties shall always advise each other of such announcements prior to making them and shall always ensure that such announcements are not in publications likely to conflict with the ethos or ethics of either Party.

7. **MODIFICATION OF THE AGREEMENT:** The terms and conditions of this Agreement may not be orally amended, modified, or altered but may be amended, modified, or altered only in writing signed by the DLE and ABUAD.

8. **NOTICES:** Any notice, requests, consents, approvals, contact and other communications required, or in connection with this Agreement shall be in writing and may be delivered to the recipient Party by hand, or registered post or recorded delivery service or electronic message, at its address or to its email address as stated below (or such other address or email address as may be notified in writing to the Parties from time to time).

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(a) **Dorman Long Engineering Limited**
12/14 Agege Motor Road
Idi – Oro
Mushin
Lagos

Attention: Engr. Chris Ijeli
Email: Chrisijeli@dormanlongeng.com

(b) **Afe Babalola University Ado – Ekiti**
KM85, AFE BABALOLA WAY
Ado – Ekiti
Ekiti State

Attention: Christie Oluborode
Email: reg_christieoluborode@abuad.edu.ng

9. **TERMINATION:** This Agreement shall terminate automatically as between the Donor and the Donee if the Parties mutually agree that the Purpose is no longer valid for their organisations, or upon the service of 1 (One) academic session's notice by a Party upon the other of its intention not to continue the relationship. Unless earlier terminated under the immediately preceding sentence, this Agreement shall terminate 5 (Five) years after its Effective Date.

10. **GOVERNING LAW:** This Agreement shall be governed by and construed in accordance with the Laws of the Federal Republic of Nigeria.

11. **DISPUTE RESOLUTION**

11.1 In the event of a dispute between the Parties regarding this Agreement, its interpretation, performance or any other matter relating to this Agreement, the Parties shall resolve such dispute by amicable negotiations.

11.2 In the event that any dispute cannot be resolved informally within 10 (ten) days of initiating discussions, the dispute or difference shall be escalated to the level of the managing officers of both organizations for resolution.

11.3 If the managing officers are unable to resolve the dispute or difference by mutual agreement within twenty-one (21) days of holding consultations, either of the Parties may refer the matter for resolution by mediation in accordance with the Lagos State Multidoor Courthouse Rules and in accordance with this Clause, by serving a 10 (ten) days' notice (a "Mediation Notice") on the other Party. The proceedings shall be held in Lagos State and shall be conducted in English language. Nothing contained in this Clause shall prevent either Party from obtaining interim or urgent relief from a Court of competent jurisdiction or from approaching a court of competent jurisdiction where mediation fails.

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12. **COUNTERPARTS:** This Agreement may be executed in any number of counterparts, each of which will be deemed an original of this Agreement, and which together will constitute one and the same instrument. Neither Party will be bound to this Agreement unless and until both Parties have executed a counterpart.

IN WITNESS WHEREOF, the duly authorized representatives of the Parties hereto have executed this Agreement on the date first written above.

Signed for and on behalf of
DORMAN LONG ENGINEERING LIMITED

Name: Chris Ijeli

Signature:

Designation: Managing Director/CEO

Date: 19/01/2024

Name: Nkeiruka Mgbeoji

Signature:

Designation: Gm Legal/Corporate Services

Date: 19. 01. 2024

Signed for and on behalf of
AFE BABALOLA UNIVERSITY ADO - EKITI

Name: PROF. E. S. OLARINDE

Signature:

Designation: VICE-CHANCELLOR

Date: 31ST JAN. 2024

Name: Engr. Prof. J. O. ADA

Signature:

Designation: PROVOST, ENGINEERING

Date: 31ST JAN. 2024

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